

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
FAMILY LAW DIVISION**

In re: the Marriage of:

SARAH HANSON,

Petitioner/Wife,

Case No.: 24-DR-001150

and

CHRISTOPHER HANSON,

Division: D

Respondent/Husband.

_____ /

WIFE'S MOTION FOR JUDICIAL DEFAULT

Petitioner, Sarah Hanson (“**Wife**”), by and through the undersigned attorney, moves this Court for entry of a Judicial Default against Respondent, Christopher Hanson (“**Husband**”). As grounds therefore, Wife states as follows:

1. On April 4, 2024, Husband was served with the Joint Petition for Dissolution of Marriage with Dependent/Minor Children (the “**Petition**”) [DIN 5].
2. Husband never filed a written response to the Petition.
3. Fla. R. Fam. L. P. 12.190 (a) provides in relevant part that “[a] party may amend a pleading once as a matter of course at any time before a responsive pleading is served . . . “
4. On October 2, 2024, Wife filed an Amended Petition for Petition for Dissolution of Marriage and for Other Relief (the “**Amended Petition**”) [DIN 42].
5. Fla. R. Fam. L. P. 12.190 (a) provides in relevant part that “[a] party must plead in response to an amended pleading within 10 days after service of the amended pleading unless the court otherwise orders.”
6. Pursuant to Fla. R. Fam. L. P. 12.190 (a), Husband’s answer to Wife’s Amended Petition was due on Monday, October 14, 2024.

7. Wife acknowledges that on November 11, 2024, counsel for Husband filed a Motion for Extension of Time to File Answer to Wife’s Amended Petition for Dissolution of Marriage (“Husband’s Motion for Extension of Time”) [DIN 52]; however, the Court should take the following facts into consideration:

a. Husband requested an additional 30 days to file his Answer to Wife’s Amended Petition and the 30-day period has expired; and

b. In an email from Husband’s current attorney, Vivian Cortes Hodz, Esq., to Husband dated December 2, 2024, which Husband¹ intentionally filed with the Court on December 13, 2024, at 2:10 a.m. [DIN 64] thereby waiving attorney-client privilege, Ms. Hodz, advised Husband that his prior counsel “HH&D had prepared a rough draft” of the responsive pleading to the Amended Petition.

8. As of the date of the filing of this motion, **which is 73 days after the filing of Wife’s Amended Petition**, Husband has failed to file a response to Wife’s Amended Petition. **(Emphasis added).**

9. Somewhat ironically, on December 13, 2024, between the hours of 1:16 a.m. and 2:51 a.m., Husband electronically filed eight (8) emails with the Court [DIN 59-66], several of which he asserts intentional delay by Wife, yet at the same time, Husband has failed to file a pleading responding to Wife’s Amended Petition during the past 73 days.

10. Wife acknowledges that the Court cannot default Husband regarding issues relating to parental responsibility and time-sharing.

11. Accordingly, Wife moves for a judicial default against Husband for all issues other than parental responsibility and time-sharing.

¹ To be clear, this email was electronically filed by Husband individually, along with seven (7) other emails. This email was not filed by Husband’s current attorney.

WIFE'S REQUEST FOR RELIEF

WHEREFORE, Wife respectfully requests this Court enter an order granting the following relief:

- A. Entering a judicial default against Husband for all matters pled in Wife's Amended Petition other than those which relate to parental responsibility and time-sharing; and
- B. Granting any further relief the Court deems proper under the circumstances.

Dated: December 13, 2024

Respectfully submitted,

/s/ Scott Paul Davis

Scott Paul Davis, Esq., B.C.S.

Fla. Bar No. 0115540

scott@davislawtampa.com

service@davislawtampa.com

TAMPA BAY FAMILY LAW & MEDIATION, P.A.

P.O. Box 118667

Tampa, FL 33679

(813) 251-6222 (telephone)

Counsel for Wife

CERTIFICATE OF SERVICE

I hereby certify that, on December 13, 2024, a true and correct copy of the foregoing was served via the Florida Courts E-Filing Portal on all counsel of record.

/s/ Scott Paul Davis